

Vijay Kumar v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 28 March 2023 · WRIT - C No. 8572 of 2023 · **Writ disposed with liberty to file a clause 6.5 objection; recovery stayed for six weeks.**

HEADNOTE

Writ challenging an electricity recovery order disposed with liberty to object to the bill and demand under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer must decide the objection by a speaking order; the recovery abides that decision and stays for six weeks if the objection is filed within two weeks.

FACTUAL SUMMARY

The petitioner, Vijay Kumar, challenged a recovery order dated 10 October 2022 issued by respondent no. 2 for electricity dues. He contended that he had already paid the entire dues when his connection was permanently disconnected and that the later demand was illegal. Counsel for the electricity department sought to support the demand by placing calculations before the Court. A week earlier, on 20 March 2023, the department had been granted time to obtain instructions.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to electricity bill and recovery before the Executive Engineer

HOLDING

The writ was disposed with liberty to the petitioner to file, within two weeks, an objection against the impugned bill and the consequent demand under clause 6.5 of the U.P. Electricity Supply Code, 2005. The concerned Executive Engineer must decide that objection in accordance with law by a speaking order. The impugned recovery abides that decision. If the objection is filed within two weeks, recovery remains stayed for six weeks, within which the Executive Engineer is to decide. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court did not rule on the legality of the 10 October 2022 recovery or the demand, and disposed of the writ with liberty to file an objection under clause 6.5. ¶ 2

clause-6.5-representation-executive-engineer The objection against the bill and demand is to be decided by the concerned Executive Engineer by a speaking order in accordance with law, and the recovery abides that decision. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY ORDER DATED 10 OCTOBER 2022 AND THE UNDERLYING ELECTRICITY DEMAND WERE LEGAL, IN LIGHT OF THE CLAIM OF FULL PAYMENT AT PERMANENT DISCONNECTION

Left to the Executive Engineer under clause 6.5, to be decided by a speaking order. ¶ 2